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Case Number: 25STCV22704 Hearing Date: June 24, 2026 Dept: 408

1.

Defendant

B & R Commerce's Demurrer to Plaintiff Kevin Guerra's Second Amended

Complaint is OVERRULED.

2.

Defendant

B & R Commerce's Motion to Strike Portions of Plaintiff Kevin Guerra's

Second Amended Complaint is GRANTED.

I.

BACKGROUND

On August 1,

2025, Plaintiff Kevin Guerra ("Plaintiff") filed a complaint against Defendant

B & R Commerce ("Defendant" or "B & R") arising from Plaintiff's

employment alleging causes of action for:

1.

Disability

Harassment, Discrimination, and Retaliation in Employment;

2.

Violation

of the California Family Rights Act; and

3.

Retaliation

and Wrongful Termination in Violation of Public Policy.

On January 23, 2026, Plaintiff filed

a First Amended Complaint ("FAC") alleging causes of action for:

1.

Disability

Harassment in Violation of FEHA;

2.

Disability

Discrimination in Violation of FEHA;

3.

Retaliation

in Violation of FEHA;

4.

Violation

of the California Family Rights Act; and

5.

Wrongful

Termination on Violation of Public Policy.

On March 13, 2026, Plaintiff filed a

Second Amended Complaint ("SAC") alleging causes of action for:

1.

Disability

Harassment in Violation of FEHA;

2.

Disability

Discrimination in Violation of FEHA;

3.

Retaliation

in Violation of FEHA; and

4.

Wrongful

Termination in Violation of Public Policy.

On April 7, 2026, Defendant filed

this Demurrer and Motion to Strike against Plaintiff's SAC. On May 14, 2026,

Plaintiff filed an opposition to Defendant's Demurrer. On May 20, 2026,

Defendant filed a reply and a Notice of Non-Opposition to Defendant's Motion to

Strike.

II.

DEMURRER

A.

Legal

Standard

"The party

against whom a complaint or cross-complaint has been filed may object, by

demurrer or answer as provided in Section 430.30, to the pleading on any one or

more of" various grounds listed in statute. (Code Civ. Proc., § 430.10.)

When

considering demurrers, courts read the allegations liberally and in context. In

a demurrer proceeding, the defects must be apparent on the face of the pleading

or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.*

(2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone,

and not the evidence or facts alleged." (*E-Fab, Inc. v. Accountants,*

Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

B.

Discussion

Defendant demurs to the four causes of action alleged in Plaintiff's SAC pursuant to Code of Civil Procedure section 430.10, subdivision (e), on the grounds that Plaintiff fails to state sufficient facts to constitute causes of action.

1.

1st

Cause of Action – Disability Harassment in Violation of FEHA

It is an unlawful employment practice under

FEHA for an employer to harass an employee because of their age, race, national

origin, or disability. (Gov. Code § 12940, subd. (j)(1).) “To establish a prima

facie case of unlawful harassment under FEHA, a plaintiff must show ‘(1) he was

a member of a protected class; (2) he was subjected to unwelcome ...

harassment; (3) the harassment was based on [the plaintiff’s membership in an

enumerated class]; (4) the harassment unreasonably interfered with his work performance

by creating an intimidating, hostile, or offensive work environment; and (5)

[the employer] is liable for the harassment.’ [Citation.]” (Martin v. Board

of Trustees of California State University (2023) 97 Cal.App.5th 149,

170.) Furthermore,

a plaintiff must demonstrate that the harassment was severe or pervasive. (Caldera

v. Department of Corrections and Rehabilitation (2018) 25 Cal.App.5th 31,

38.)

The SAC alleges that Plaintiff

was employed by Defendant as a shipping specialist. (SAC,

¶ 6.) During Plaintiff’s employment, Plaintiff suffered from a disability,

including a torn achilles tendon and a back injury. (Id., ¶ 7.) In June 2023, Plaintiff requested medical leave to heal from such disabilities. (Id., ¶¶ 8-9.) Plaintiff was placed on medical leave for approximately 5 months. (Id., ¶ 10.) In December 2023, Plaintiff returned to work with restrictions and requested reasonable accommodations for his disability, including schedule flexibility for physical therapy appointments and abiding by Plaintiff's reasonable workplace restrictions. (Id., ¶ 11.) The SAC alleges that Plaintiff began experiencing hostile and degrading treatment from his supervisor, Claudia Perez ("Perez"), upon Plaintiff's return with medical restrictions. (Id., ¶ 12.) The SAC alleges that Perez refused to train Plaintiff, refused to answer his work-related questions, and intentionally withheld guidance necessary for Plaintiff to perform his duties. (Ibid.) Moreover, between December 2023 and May 2024, Defendant issued Plaintiff three disciplinary write-ups and suspended Plaintiff once. (Id., ¶ 13.) Plaintiff alleges that such disciplinary actions were pretextual and issue in retaliation of Plaintiff's medical leave, requests for accommodation, and complaints about his treatment. (Ibid.) Plaintiff also alleges that Perez's purported harassment was constant as Perez would audibly roll her eyes, sigh, and make dismissive comments under her breath in front of other employees when Plaintiff attempted to ask questions or seek assistance. (Id., ¶ 14.) Perez also allegedly mocked Plaintiff

and laughed at him in the presence of coworkers, intentionally isolated

Plaintiff from other employees and staff, and denied Plaintiff additional

training opportunities that were provided to other employees who had not taken

medical leave. (Ibid.)

The SAC further alleges that, in January 2024, Plaintiff's

physician cleared him to return to full-time work with no restrictions, but

Defendant refused to restore Plaintiff to his prior full-time position and

continued to limit his hours,

forcing Plaintiff to apply for unemployment benefits. (Id., ¶ 15.) Although

Plaintiff complained to management regarding such conduct, Defendant failed to

investigate or correct the conduct allowing the harassment to continue. (Id., ¶ 16.)

Subsequently, in April 2024, Plaintiff suffered a back

injury at work and filed a worker's compensation claim. (Id., ¶ 17.)

Plaintiff requested reasonable accommodations to attend physical therapy

twice weekly for this back injury.

(Ibid.) However, on May 7, 2024, Plaintiff was terminated for the reason

of "not being a good fit" without

Defendant engaging in the interactive process or discussing his accommodations.

(Id., ¶ 18.) Plaintiff alleges that his complaints

regarding the failure to return him to full time work after his restrictions

were removed, his requests for accommodation mere weeks before his termination, and his protected medical leave were a substantial motivating reason for Defendant's decision to terminate his employment. (Id., ¶ 19.)

Defendant argues

that Plaintiff fails to allege conduct that goes beyond the scope of personnel management decisions, fails to allege severe or pervasive conduct, and fails to a nexus between the purported harassing conduct and his disability to support a claim for disability harassment under FEHA. (Demurrer, at pp. 5-9.)

The court finds that Plaintiff

sufficiently alleges a hostile work environment claim based on disability harassment. As a whole, the complaint provides sufficient allegations demonstrating that Defendant created a hostile and abusive work environment following Plaintiff's request for accommodations and leave due to disability which led to his termination. Such conduct was specifically alleged through Perez's conduct and Defendant's subsequent termination of Plaintiff. (Roby v. McKesson Corp. (2009) 47 Cal.4th 686, 707-711 ["some office employment actions done in furtherance of a supervisor's managerial role can also have a secondary effect of communicating a hostile message [,] [t]his occurs when the actions establish a widespread pattern of bias."].)

Accordingly, the

demurrer is overruled as to the first cause of action.

2.

2nd

Cause of Action – Disability Discrimination in Violation of FEHA

To establish a claim for discrimination

under FEHA, a plaintiff must allege “that (1) he was a member of a protected

class, (2) he was qualified for the position he sought or was performing

competently in the position he held, (3) he suffered an adverse employment

action, such as termination, demotion, or denial of an available job, and (4)

some other circumstance suggests discriminatory motive.” (Guz v. Bechtel

National Inc. (2000) 24 Cal.4th 317, 355.)

Defendant argues that Plaintiff failed to

allege his ability to perform essential functions of his position and failed to allege facts supporting

a reasonable inference of discriminatory intent for the purported adverse

employment action to support a claim for disability discrimination. (Demurrer,

at pp. 9-11.)

The SAC alleges that Plaintiff was able to perform the

essential functions of his position as a shipping specialist with reasonable

accommodations, including temporary lifting restrictions and modified

scheduling for physical therapy. (SAC, ¶ 37.) The court finds that such

allegation is sufficient to establish Plaintiff's ability to perform competently

in his position at the pleading stage. Moreover, the court finds that the SAC

as described above provides sufficient facts to suggest discriminatory motive for the disciplinary actions and termination of Plaintiff.

Accordingly, the

demurrer is overruled as to the second cause of action.

3.

3rd

Cause of Action – Retaliation in Violation of FEHA

"To establish a prima facie case of retaliation under [FEHA],

a plaintiff must show (1) he or she engaged in a 'protected activity,' (2) the

employer subjected the employee to an adverse employment action, and (3) a

causal link existed between the protected activity and the employer's action."

(Meeks v. Autozone, Inc. (2018) 24 Cal.App.5th 855, 878-879.) "An

'adverse employment action,' which is a critical component of a retaliation

claim, requires a substantial adverse change in the terms and conditions of the

plaintiff's employment." (Holmes v. Petrovich Development Co., LLC (2011)

191 Cal.App.4th 1047, 1063 [quotation marks omitted].)

Defendant argues that the retaliation claim as Plaintiff

failed to allege a protected activity under FEHA and a causal connection

between the purported protected activity and the adverse employment action.

(Demurrer, at pp. 11-13.)

The court finds that the SAC sufficiently alleges that Plaintiff

engaged in protected activity, including the request for medical leave, request

for reasonable accommodations, filing of a worker's compensation claim, and

reporting of harassing and discriminating conduct, among other allegations.

(SAC, ¶ 82.) The court also finds that Plaintiff sufficiently alleges a causal

connection between such protected activity and the Defendant's disciplinary

actions and termination. The court notes that temporal proximity is sufficient to

show a retaliatory motive. (Fisher v. San Pedro Peninsula

Hospital (1989) 214 Cal.App.3d 590, 615 [" 'The causal link may

be established by an inference derived from circumstantial evidence, "such as

the employer's knowledge that the [employee] engaged in protected activities

and the proximity in time between the protected action and

allegedly retaliatory employment decisions"].) As alleged, the SAC

establishes that disciplinary actions were taken against Plaintiff upon his

return from medical leave and that Plaintiff was terminated following his

subsequent request for accommodations. (SAC, ¶¶ 73, 78.)

Accordingly, the

demurrer is overruled as to the third cause of action.

4.

4th

Cause of Action – Wrongful Termination in Violation of Public Policy

An employee has a common law right

to sue for wrongful termination “when he or she is discharged for

performing an act that public policy would encourage, or for refusing to do

something that public policy would condemn.” (Gantt v. Sentry

Insurance (1992) 1 Cal.4th 1083, 1090 [overruled on other

grounds].) “The elements of a claim for wrongful discharge in

violation of public policy are (1) an employer-employee relationship, (2) the

employer terminated the plaintiff’s employment, (3) the termination was

substantially motivated by a violation of public policy, and (4) the discharge

caused the plaintiff harm.” (Nosal-Tabor v. Sharp Chula Vista Medical

Center (2015) 239 Cal.App.4th 1224, 1234-1235, quoting Yau v.

Allen (2014) 229 Cal.App.4th 144, 154.)

Defendant argues that the wrongful termination claim fails

as it is wholly derivative of the alleged statutory violations under FEHA

which are insufficient as argues above. (Demurrer, at pp.13-14.)

The court finds that as Plaintiff’s FEHA claims were

sufficient for the reasons stated above, the wrongful termination claim also

withstands Defendant's demurrer.

Accordingly, the

demurrer is overruled as to the fourth cause of action.

III.

MOTION

TO STRIKE

A.

Legal

Standard

Pursuant to Code of Civil Procedure section 436, "the court

may, upon a motion made pursuant to Section 435, or at any time in its

discretion, and upon terms it deems proper: (a) Strike out any irrelevant,

false, or improper matter inserted in any pleading. (b) Strike out all or any

part of any pleading not drawn or filed in conformity with the laws of this

state, a court rule, or an order of the court." (Code Civ. Proc., § 436.) The

grounds for a motion to strike must "appear on the face of the challenged pleading

or from any matter of which the court is required to take judicial notice."

(Code Civ. Proc., § 437.)

B.

Discussion

Defendant seeks to strike portions of the SAC pertaining to

Plaintiff's demand for punitive damages and request for attorney's fees under Code of Civil Procedure section 1021.5.

(Motion, at p. 2.)

The court notes that Plaintiff failed to file an opposition

as to Defendant's Motion to Strike. (Cal. Rules of Court, Rule 8.54,

subd. (c) ["A failure to oppose a motion may be deemed a consent to the

granting of the motion."]; *Sexton v. Superior Court* (1997) 58

Cal.App.4th 1403, 1410.)

1.

Punitive Damages

Punitive damages may be awarded in an action for the breach

of an obligation not arising from contract upon clear and convincing evidence

that a defendant has been guilty of oppression, fraud, or malice. (Civ. Code §

3294, subd. (a).)

"Malice" is defined as "conduct which is intended by the

defendant to cause injury to the plaintiff or despicable conduct which is

carried on by the defendant with a willful and conscious disregard of the

rights or safety of others." (Civ. Code § 3294, subd. (c)(1).) "Oppression" is

defined as "despicable conduct that subjects a person to cruel and unjust

hardship in conscious disregard of that person's rights." (Civ. Code § 3294, subd. (c)(2).) "Fraud" is defined as "an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Civ. Code § 3294, subd. (c)(3).)

The court finds that

Plaintiff fails to allege sufficient facts to warrant punitive damages. In support of Plaintiff's request for punitive damages, the SAC alleges that Defendant's conduct was willful, wanton, malicious, intentional, oppressive and despicable and were done in willful and conscious disregard of the rights, welfare and safety of Plaintiff ratified by managerial agents and employees of Defendant. (SAC, ¶¶ 30, 60, 90, 103.) Without more, the court does not find that Defendant's alleged conduct rises to the level of malice or oppression required for punitive damages.

Accordingly, the

motion is granted as to Plaintiff's request for punitive damages and related allegations.

2.

Attorney's

Fees

Attorney's fees

are recoverable only when authorized by contract, statute, or law. (Code Civ.

Proc., § 1033.5, subd. (a)(10).)

Defendant argues that Plaintiff's request for attorney's

fees under Code of Civil Procedure section 1021.5 of the Private Attorney

General Act ("PAGA") is improper as a matter of law. (Motion, at pp. 6-7; SAC,

¶ 104.)

The court agrees that a request for attorney's fees under

Section 1021.5 is improper as Plaintiff

does not allege a PAGA claim. Plaintiff may seek to recover attorney's fees

under FEHA for the causes of action alleged.

Accordingly, the

motion is granted as to Plaintiff's request for attorney's fees under Section

1021.5.

IV.

CONCLUSION

1.

Defendant

B & R Commerce's Demurrer to Plaintiff Kevin Guerra's Second Amended

Complaint is OVERRULED.

2.

Defendant

B & R Commerce's Motion to Strike Portions of Plaintiff Kevin Guerra's

Second Amended Complaint is GRANTED.